

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-09
QVC, INC. AND CORNERSTONE BRANDS, INC.
v.
OCEAN NETWORK EXPRESS PTE. LTD.

JOINT REPORT AND MOTION TO EXTEND DEADLINES

COME NOW the parties, Complainants, QVC, INC. AND CORNERSTONE BRANDS, INC. (“Complainants” or “QVC”), and Respondent Ocean Network Express Pte. Ltd. (“Respondent” or “ONE”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Report and Motion to Extend Deadlines (“Motion”) and respectfully request an extension of the deadlines set forth in the Presiding Officer’s November 24, 2025 Scheduling Order a second time to accommodate the current progress of the Parties’ discovery, which is progressing as quickly as possible.

I. The Current Schedule

On November 24 the Presiding Officer entered a Scheduling Order with the following deadlines relevant to this Motion:

EVENT	CURRENT DEADLINE
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	02/17/2026
Substantial completion of productions of documents and ESI in response to initial RFPs	03/9/2026
Complete depositions of fact witnesses	04/24/2026
Last day to serve interrogatories, requests for admission, and RFPs	04/24/2026
Joint Status Report regarding discovery	05/15/2026
Disclosure of initial expert reports, if any	05/26/2026
Disclosure of rebuttal expert reports, if any	06/09/2026
Last day to respond to interrogatories, requests for admission, and RFPs	06/15/2026
Close of fact discovery	06/15/2026
Complete expert depositions and all discovery	06/30/2026
Complainant's initial brief, proposed findings of fact, and appendix	07/31/2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	08/31/2026
Complainant's reply and responses to proposed findings of fact	09/14/2026

The Parties submit the below as good cause for an additional extension of each of the respective dates at issue. The Parties have worked together to make significant steps in the discovery process in the present matter.

Complainants made an initial production of 13,367 documents to Respondent on March 6, 2026. Complainants made a second production of 4,135 documents on March 16, 2026. Complainants are in the process of reviewing documents for privilege, and plan to make additional productions and to produce a privilege log to Respondent.

Respondent has also worked diligently with its data vendor to ensure that documents are ready for collection, review, and production to Complainants. Respondent has met with its vendor on a weekly basis to discuss the ESI Protocol, the collection and ingestion of additional electronic

documents and data, searches of relevant data, and review of this data for production. Respondent completed an initial search to identify over 850,000 potentially responsive documents collected from selected custodians and electronic files. Notwithstanding its continuing efforts, Respondent has not been able to start producing documents to Complaint until March 29, 2026 when it produced 3,427 documents to Complainant. Respondent has produced a second set of 646 documents to Complaints on May 11, 2026. At the same time, Respondent continued to work diligently with its vendor to be able to continue producing documents to Complainants. Due to the volume of initially collected documents and the specific issues involved in this matter, multiple rounds of review and improvement of a generative AI review prompt was necessary to identify responsive documents. Respondent gave instructions to its vendor to run the final review prompt on roughly 400,000 remaining, potentially responsive documents on May 13, 2026. Accordingly, an additional large production of documents is expected to be finalized for delivery within the next 2 weeks. At that point in time Respondent expects its production of documents to be substantially completed. Smaller productions of those responsive documents requiring redactions and a log of privileged documents will follow.

Once those productions are completed, the Parties will still need the time to review the voluminous batches of document productions and prepare to take depositions. Simply stated, this request is based on the pace of the Parties' productions and reviews even when using all resources and all good faith efforts. To address it in any workable manner, using all reasonable efforts, the Parties respectfully submit that the request made herein be granted.

II. Good Cause Exists to Extend the Current Deadlines

A. Large Discovery Volumes Contribute to the Need for an Extended Timeframe

The facts concerning the status of discovery can be summarized as follows: the Parties have worked diligently and cooperatively in order to meet the Scheduling Order's March 9, 2026

deadline for substantial completion of document (including ESI) production, have made rolling productions of documents to one another, and have met and conferred, but the volume of the documentation prevented the meeting of that deadline.

From the documents collected, both Parties must manually review them for the information they offer, organize them, address any privilege issues and finally marshal a working knowledge of all to allow further steps, such as depositions, to be done in a meaningful manner. That process necessarily requires substantial time and care. This review will cover hundreds of thousands of documents to be reviewed by the Parties for production.

The Parties have continuously worked with their respective e-discovery partners to streamline the process as much as possible and continue to do so, but there is no question the entire process has been time and effort intensive.

As a part of the ongoing review and rolling productions process, the Parties will need to work to review the substantial amount of documents that are pulled in by the Parties' ESI Protocol terms. The Parties submit that the substantial volume of documents, the need for thorough review, and the pace that the documents can be intelligently reviewed is a good cause reason for an extension of time to ensure that the Parties can complete their discovery obligations effectively and each Party is not prejudiced by the fact that a very large amount of documents have been collected in accord with discovery demands properly put forth.

B. The Large Discovery Volumes Will Impact Other Case Milestones

The Parties remain respectful of the deadlines set forth in the November 24, 2026 Scheduling Order, and to date have worked together diligently and collaboratively to satisfy its terms. However, the complexity and the expected size of the responsive documentation has made it clear to the Parties that even with all their best efforts, they will not be able to complete

production and review of document discovery within the present deadlines. Consequently, the Parties would not be able to adequately prepare for and take depositions based upon a full factual record and further would not be able to present their respective claims and defenses adequately in their respective briefs or in any eventual trial in this action.

The Parties have and continue to work to limit the need for any discovery-related disputes to be brought before the Presiding Officer. To facilitate this goal while providing the Presiding Officer with timely updates, the Parties propose providing a second Joint Status Report to the Presiding Officer by June 15, 2026, and adding a third Joint Status Report for July 27, 2026.

The Parties are aware of the prior Order of this tribunal and the Chief Administrative Law Judge Erin M. Wirth's Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this Motion, the Parties have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

Although the Parties will continue to endeavor to adhere to the ordered schedule, the sheer volume of documents may make for an impossible situation as is the case now. Other reasons may include issues arising from the collection and production of documents located abroad or in the custody of non-parties, the need for significant Party depositions, or the need for testimony from non-parties or individuals located abroad (including employees of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available. However, in the interest of

full transparency, the Parties wish to note such possible issues to the Presiding Officer now. Indeed, as is a matter of public record, in an action before the Commission by the complainant in that case against another ocean carrier in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where the complainant has raised similar legal claims as in the present action, the parties there took over 30 total depositions.

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

As shown above, a higher volume of documents by many magnitudes is involved in this matter than the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. Instead, this case is much more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where, as mentioned, over 30 depositions were taken. Given the significant number of custodians in the present case, it is possible that the number of depositions conducted in this case will approximate those which were taken in the *BBBY v. OOCL* proceeding. If so, both Parties are intent on avoiding any wasteful actions and will work to streamline all such developments to their fullest ability.

III. Conclusion

Given that the Parties are still working diligently to review and produce documents, the Parties respectfully submit that an extension of the deadlines in the Presiding Officer's November 24, 2026 Scheduling Order is necessary to allow the Parties a fair opportunity to review and

conclude their respective production of documents, review such productions from the opposing party or third parties, depose each other's respective fact and expert witnesses, and assess any additional discovery. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

The Parties therefore jointly request the following amended Scheduling Order for substantial completion of document (including ESI) production:

EVENT	PROPOSED DEADLINE
Substantial completion of productions of documents and ESI in response to initial RFPs	05/29/2026
Joint Status Report 2 regarding discovery	06/15/2026
Complete depositions of fact witnesses	07/14/2026
Last day to serve interrogatories, requests for admission, and RFPs	07/14/2026
Joint Status Report 3 regarding discovery	07/27/2026
Disclosure of initial expert reports, if any	08/14/2026
Disclosure of rebuttal expert reports, if any	08/28/2026
Last day to respond to interrogatories, requests for admission, and RFPs	09/03/2026
Close of fact discovery	09/03/2026
Complete expert depositions and all discovery	09/18/2026
Complainants' initial brief, proposed findings of fact, and appendix	10/20/2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	11/19/2026
Complainants' reply and responses to proposed findings of fact	12/04/2026

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainants and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: May 15, 2026

Respectfully submitted,

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